

SENATE No. 3154

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, July 9, 2026.

The committee on Environment and Natural Resources, to whom was referred the petitions (accompanied by bill, Senate, No. 606) of Barry R. Finegold for legislation relative to further testing after a combined sewage overflow event; and (accompanied by bill, Senate, No. 608) of Patricia D. Jehlen relative to combined sewer overflows, report the accompanying bill (Senate, No. 3154).

For the committee,
Rebecca L. Rausch

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An act relative to combined sewer overflows.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 43A of chapter 21 of the General Laws, as appearing in the 2024
2 Official Edition, is hereby amended in subsection (a) by inserting after the second sentence the
3 following sentence:-

4 “Combined sewer system overflow”, a discharge or release from a combined sewer
5 system directly or indirectly into water bodies and waterways of the commonwealth.

6 SECTION 2. Said Section 43A of said chapter 21, as so appearing, is further amended in
7 subsection (a) by inserting after the sixth sentence the following sentence:-

8 “Untreated combined sewer system overflow”, a discharge or release as a result of a
9 combined sewer system overflow that is not treated through at least the removal of solids and
10 treatment to deactivate bacteria.

11 SECTION 3. Said section 43A of said chapter 21, as so appearing, is hereby further
12 amended by inserting after subsection (f) the following subsection:-

(f½) (i) The department, in consultation with the department of public health, shall establish quality assurance project plan standards for the testing of water bodies and waterways for bacteria or other pollutants following a discharge from a permittee's combined sewer system overflow outfall.

(ii) Subject to appropriation, testing shall be conducted by the department or its designee, using the department's quality assurance project plan, within a reasonable amount of time after a combined sewer system overflow notification as determined by the department based on the time elapsed since the combined sewer system overflow and the flow rate of the water body or waterway. Testing shall be conducted at multiple locations downstream from each combined sewer system overflow outfall. Testing may be suspended during the months of December to March, inclusive, based on weather conditions as determined by the department.

(iii) Annually, not later than November 1, the department shall compile the data from each combined sewer system overflow and produce a report. The department, in consultation with the department of public health, shall use this data to create a predictive model for water quality following a combined sewer system overflow. The report and the water quality predictions shall be provided to the joint committee on environment and natural resources and the clerks of the senate and house of representatives. The department shall publish the report and the water quality predictions on its website.

(iv) The department shall use the data compiled pursuant to paragraph (iii) to determine areas with high bacteria or pollutant content and shall require any permittee with bacteria content to develop a combined sewer system overflow mitigation plan, which shall be subject to

approval by the department. Permittees with an approved combined sewer system overflow mitigation plan shall be prioritized in state storm water funding.

SECTION 4. Said section 43A of said chapter 21, as so appearing, is hereby further amended in subsection (g) by striking out the first 2 paragraphs and inserting in place thereof the following paragraph:-

The department shall: (i) require permittees to report to the department the volume of discharge from an outfall; (ii) assist permittees with installing accurate metering equipment to measure discharge from an outfall; and (iii) issue public advisories within the timeframes established by subsections (c) and (d).

SECTION 5. Said section 43A of said chapter 21, as so appearing, is hereby further amended in subsection (k) by adding the following words:- Said regulations shall include: (i) a threshold for high bacteria or pollutant content; (ii) standards for the quality assurance project plan required by this section; and (iii) a definition of a 25-year, 24-hour storm event.

SECTION 6. Said section 43A of said chapter 21, as so appearing, is hereby further amended by adding the following subsection:-

(l) There shall be no untreated combined sewer system overflow during or following a 25-year, 24-hour storm event or smaller storm event in any of the Massachusetts Water Resources Authority sewer service areas.

SECTION 7. Sections 1 to 4, inclusive, shall take effect on January 1, 2027.

SECTION 8. Section 5 shall take effect on January 1, 2028.

SECTION 9. Section 6 shall take effect on January 1, 2030.